



Appeal Decision

by L Clark BA(Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: 6010644

Ronbar, 2 Crowther Road, Crowther Industrial Estate, Washington, Tyne & Wear NE38 0AA

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
- The appeal is made by Darren Buckingham against the decision of Sunderland City Council.
- The application Ref is 25/02487/FUL.
- The development proposed is change of use from planning use Class B8 (storage) to Class E(d) indoor sports facility (padel courts) with associated alterations to the door and window arrangements.

Decision

1. The appeal is allowed and planning permission is granted for the change of use from planning use class B8 (storage) to class E(d) indoor sports facility (padel courts) with associated alterations to the door and window arrangements at 2 Crowther Road, Washington, Tyne and Wear NE38 0AA in accordance with the terms of the application, Ref 25/02487/FUL, subject to the following conditions:
 - 1) The development hereby permitted shall begin not later than 3 years from the date of this decision.
 - 2) The development hereby permitted shall be carried out in accordance with the following approved plans:

Location Plan, received 28/10/2025
Drawing No. 416/1517 (Existing and Proposed Site Plan), received 28/10/2025
Drawing No. 01 (Existing and Proposed Floor Plans), received 19/12/2025
Drawing No. 02 (Existing Elevations), received 28/10/2025
Drawing No. 03 (Proposed Elevations), received 28/10/2025
 - 3) The materials to be used in the construction of the external surfaces of the extension shall match those used in the existing building.
 - 4) The car park spaces shown on Drawing 416/1517 (Existing and Proposed Site Plan), received 28/10/2025 shall be kept available for the parking of motor vehicles associated with the approved development and be retained at all times.
 - 5) Notwithstanding Condition 2, prior to the first use of any padle court hereby approved, details of secure cycle storage shall be submitted to and approved in writing by the Local Planning Authority. These details shall include plans at a scale of at least 1:50 to show the location of secure cycle parking and include the type of stands to be installed. The development shall be carried out in accordance with the approved details, and the spaces shall thereafter be retained as secure cycle parking for the approved development.

Preliminary Matters

2. The proposal is for change of use from planning use class B8 (storage) to class E(d) indoor sports facility (padel courts) with associated alterations to the door and

window arrangements. From my reading of the evidence, the Council has no concerns with regard to the external changes to the building which include alterations to the door and window arrangements. Therefore, the main area of dispute is the change of use of the appeal site (Ronbar North) and the loss of employment land, and this shall be the focus of my assessment.

3. During the course of the appeal the revised National Planning Policy Framework (Framework) was published. The main parties were provided with an opportunity to comment, and I have had regard to the 2026 version of the Framework in my decision.
4. From my reading of the Marketing Report, it refers to both the former Prysmian Cables site (now Ronbar South) and the appeal site (Ronbar North) as Unit 1. However, it is clear from my site visit that Unit 1 is the appeal site. This is because I saw that Ronbar South had, amongst other matters, an independent loading access, office and amenity accommodation and multiple loading doors and these were the reasons for discounting Unit 1 within the HTA Real Estate¹ (Marketing Report). I have therefore disregarded this duplication in my assessment.

Main Issue

5. The main issue in this appeal is whether the development would accord with the development plan in respect of the safeguarding of employment land.

Reasons

6. Ronbar North comprises a building used for storage (Class B8). There is no dispute with either party that it is an ancillary building associated with Ronbar electrical manufacturers (Ronbar Central), which is the larger main building immediately to the south. I saw that Ronbar North is within relatively close proximity to Ronbar Central and both buildings use the same access from Crowther Road. There is a modest car park directly to the east of Ronbar North, which utilises the shared access to Ronbar Central, and a loading door to its south elevation towards the rear.
7. The appeal site lies within the Crowther Industrial Estate and is safeguarded by Criterion 1. X.² of Policy EG2 of the Core Strategy and Development Plan 2015-2033 (the Core Strategy) as a Key Employment Area (KEA) for B1 (excluding B1a), B2 and B8 uses. Although the policy predates the substantial changes to the Use Classes Order introduced in September 2020, the employment use classes relevant to the appeal site remain in effect.
8. Policy EG2, criterion 2 of the Core Strategy sets out, amongst other things, that the release of vacant premises within KEA to uses outside the B Use Classes will only be considered acceptable where it can be demonstrated that it meets criteria i. to iv.
9. Policy EG2 criterion 2.i. has three elements to it with each criterion followed by an 'or'. Therefore, in my mind, only one element needs to be met in this instance. With regard to criterion 2.i. I acknowledge that the Council contend that Employment Land Review (ELR) dated 9 March 2016³ stipulates that Crowther Industrial Estate KEA is to be retained in its entirety for the intended, designated purpose, and

¹ Dated 27 April 2026

² KEA10

³ Final Report 22691/HE/RL

without anything to the contrary, I have no reason to take a different view. The use of the appeal site for Class E(d) would therefore conflict with this element.

10. Notwithstanding this, the second element of criterion 2. i. requires the proposal to satisfactorily demonstrate to the Council that the site is no longer needed. From the evidence before me, the Council are largely silent on this matter. There is, however, no dispute that the current function of Ronbar North is ancillary to Ronbar Central. Even though planning permission was granted in 2021⁴ and Ronbar North was built in 2022, the appellant now describes the building as being surplus to the requirements of the business. This is because the appellant has purchased the building to the south (Ronbar South⁵), which the appellant describes as enabling them to expand the business and generate efficiencies in their manufacturing and storage parts.
11. I saw that Ronbar South has been connected to Ronbar Central by a short internal road. I also saw that the floor area of the building is significantly larger than Ronbar North and that Ronbar South had equipment and furniture stored inside it. The appellant is currently undertaking internal works to Ronbar South which include, amongst other things, the painting of the floor. From observations, I concur that Ronbar South has capacity for the Ronbar business to expand. The Council has provided little in their evidence to persuade me that Ronbar North is needed by the appellant. Without this and from observations on site, I am satisfied that Ronbar North is no longer needed for its allocated ancillary B Use Class.
12. The final element of criterion 2. i. is whether the site is capable of accommodating B Use Class employment use. The appellant has set out the function of Ronbar North is a storage shed and that its position, design, orientation and car parking configuration is supportive to the operations of the Ronbar business, with the building built to rely on the existing Ronbar access, circulation space and external yard area. The appellant therefore contends that the re-use of Ronbar North for accommodating other B uses would have implications on the access, yard, servicing, security and safety requirements of their site.
13. Moreover, the appellant states that the re-use of the appeal site by a third-party for B uses would also have limitations for the future occupier. These limitations were raised following the marketing of the appeal site⁶. The Marketing Report set out that the building would only be suitable for a minority of occupiers because it is integrated into the wider manufacturing site. It also states that following feedback from those interested business,' the building was discounted for, amongst other matters, having a restricted loading access, having no dedicated external storage or external manoeuvring space, a single loading door being insufficient to transport goods in and out, the lack of a dock level loading door to unload containers, and the lack of an office or amenity accommodation.
14. Given the position of the loading door at almost the furthest point from the shared access, it is highly likely that future occupiers of the building would be required to drive past and manoeuvre around any activity which Ronbar Central is undertaking. Given the comments within the HTA, the use of the current door would therefore likely incur operational difficulties for both Ronbar Central and future users of the appeal site. Whilst I am mindful that the position of the door could change, this is

⁴ Ref 21/00221/FUL

⁵ Unit 1 & 2 Crowther Road

⁶ Marketing from October 2025.

not before me and, from my observations on site and given the modest size of car park to the east, I am not persuaded that its relocation would make the appeal building any more attractive to future B uses. Therefore, from the evidence before me and without anything to the contrary, I have nothing to demonstrate that the building would be capable of accommodating B Use Class employment uses. As criterion 2. i. requires compliance with one element and not all, I find that the proposed development would comply with this criterion.

15. With regard to Policy EG2 criterion 2. ii. the Council states that there is no evidence to suggest that the integrity, function, and operation of the remaining Key Employment Area would be adversely affected as a result of the proposed change of use. However, no substantive evidence has been put before me to demonstrate that the use of the appeal site for a use outside of the B Use Classes would adversely affect the integrity, function and operation of the KEA. Therefore, given the building was built to serve an ancillary function to Ronbar Central, and from the evidence before me, the proposed development would comply with Policy EG2 criterion 2. ii of the Core Strategy.
16. Turning to whether the site is of an insufficient quality and/or suitability to accommodate existing types of industrial demand, I saw that the building is of a good quality having recently been built and could therefore be capable of accommodating existing types of industrial demand. However, whilst the building currently has a short-term lease for storage⁷, this only utilises a portion of the building and a significant portion remains vacant. Moreover, as noted above, the Marketing Report sets out that the building has been discounted by several enquirers.
17. I note that the Council contends that the appellant places weight upon the limitations of the existing building, however, given that the building was built to be ancillary to Ronbar Central and from observations on site and with regard to the feedback from the Marketing Report, those limitations are real. Therefore, from the evidence before me, and without anything to the contrary, I find that it has been demonstrated that the building is not suitable to accommodate existing types of industrial demand. The proposed development therefore complies with Policy EG2 criterion 2. iii.
18. Policy EG2 criterion 2. iv. requires the site to have been unused for employment uses for at least 24 months and properly marketed on reasonable terms. Supporting text alongside this policy sets out, amongst other things, that the marketing statement shall include clear and genuine evidence demonstrating that the land/premises has been widely marketed through an agent/surveyor dealing in commercial property at a price that reflects its current market value for B Use Class.
19. There is no dispute that Ronbar North has been marketed since October 2025 or that this period falls below the required time period. The proposed development is therefore contrary to Policy EG2 criterion 2. iv.
20. Given that each element of Policy EG2 should be satisfied, and for reasons given above, the proposed development would be contrary to Policy EG2 of the Core Strategy as a whole, the aims of which are set out above.

⁷ By Park Electrical to store solar panels.

Planning balance

21. The proposal would lead to the loss of employment land without satisfying Policy EG2 criterion 2. iv. of the Core Strategy. However, Section 38 (6) of the Planning and Compulsory Purchase Act 2004 requires that the determination of a planning application must be made in accordance with the development plan unless material considerations indicate otherwise. While I have found conflict with Policy EG2, I am mindful that there is no dispute that the appeal site is an ancillary building to the operations of Ronbar Central.
22. The Council refer me to the latest consultation response and additional commentary from its Planning Policy Section (PPS). However, it has not provided any additional responses beyond the “second response” dated 10 February 2026 within its delegated report. Notwithstanding this, I do acknowledge the PPS sets out that the latest ELR identifies approximately 18.9 hectares of employment land remaining available across KEA. However, I have found that the use of the building for an independent use would impact the operations of Ronbar Central and that the use of the building would have operational difficulties for future B uses.
23. I acknowledge that there is a requirement that the site be marketed for additional months and that it remains unused. However, when taken together with my findings above and the feedback from the marketing period would, in my mind, be contrary to the overall aims of the policy which seeks to avoid the long-term protection of employment land where there is no reasonable prospect of it being used.
24. I have found that the building is no longer required and that it is not suitable to accommodate existing types of industrial demand, and that the Council has not satisfactorily demonstrated that the use of Ronbar North for a use other than in Class B would adversely affect the integrity, function and operation of the remaining KEA. Moreover, I have no evidence to demonstrate that the appeal site would be fragmented from the wider Ronbar site.
25. The proposed use as a padel court would create approximately 10-12 full-time equivalent jobs and bring economic benefits through its use. It would also create a leisure use capable of supporting health, wellbeing, mixed communities, and increased physical and social interaction without causing any conflict with adjacent land uses.
26. Overall, I conclude that when balanced against the limited period of marketing, the benefits identified above would significantly outweigh the conflict with the development plan.

Other Matters

27. The Council has drawn my attention to a recent appeal⁸ at Filebase House, 3A Stephenson Road, Washington, which it considers is similar. In particular it refers me to where the Inspector states that “any linked employment benefits associated with the proposal would not address the requirement to safeguard the land for the specific uses set out in the policy.” However, in this case the appeal site is in a Primary Employment Area (PEA) which is safeguarded by Policy EG1 of the Core Strategy. The Inspector in this case, sets out that the supporting text alongside Policy EG1 describes PEAs to be located in the strongest demand areas and that proposals

⁸ Appeal Ref 6006595

falling outside the identified employment use classes will only be supported in exceptional circumstances. In the appeal before me, the appeal site is within a KEA, which is recognised as older and less attractive employment areas. Policy EG2 of the Core Strategy therefore does permit the release of vacant land to uses outside of B Use Class providing it can be demonstrated that it meets several criteria. Given the difference in qualifying tests, this example is not comparable to the appeal before me.

28. I note that Ronbar South requires significant improvements and the appellant states funds from the proposed development would be used to finance its redevelopment. However, whether the revenue from Ronbar North would be used to facilitate this, falls outside of the scope of my assessment.

Conditions

29. The Council has suggested a number of conditions, and I have considered them against the tests set out in the Framework and Planning Practice Guidance. In some instances, I have made minor changes to wording to improve precision and enforceability.
30. In addition to the standard time-limit, I have attached a condition specifying the approved plans to provide certainty. To protect the character and appearance of the area I have imposed conditions relating to materials. A condition is also required requiring the vehicular parking bays be retained for use by the approved development in the interests of highway safety.
31. With regard to suggested condition 5, the Council refer to Drawing No. 01 (Existing and Proposed Floor Plans), received 19/12/2025 as showing cycle storage. However, this drawing omits any cycle storage within the building. It also omits detailing any external area. While the appellant has no comment to make on the suggested conditions put forward by the Council, Policy ST3 of the Core Strategy has been submitted within its evidence. This policy sets out, amongst other things, that development should include a level of cycle storage for non-residential development in accordance with the Council's parking standards. I am satisfied from observations on site that cycle storage could be provided. Therefore, to ensure that the development provides satisfactory cycle storage a condition is necessary that requires further details of such provision and their retention within the site thereafter.

Conclusion

32. I conclude that the proposed development would be contrary to the development plan but in this instance material considerations indicate the proposal should be determined otherwise than in accordance with the development plan. Thus, for the reasons given above, the appeal should be allowed.

L Clark

INSPECTOR